



CITIZENSHIP • N-400 NATURALIZATION

# U.S. Naturalization Guide

Becoming a U.S. Citizen — The Complete N-400 Process

Step-by-step guide to U.S. citizenship through naturalization — covers the 5-year and 3-year rules, residency and physical presence requirements, good moral character, English and civics tests, and the oath ceremony.

**Prepared by ImmigrationIQ**

immigrationiq.us | [contact@immigrationiq.us](mailto:contact@immigrationiq.us)

## WHAT'S INSIDE THIS KIT:

✓ Eligibility — 5 vs 3 year rules ✓ Residency & physical presence math ✓ Good Moral Character explained ✓ Step-by-step N-400 process ✓ Document checklist ✓ Civics & English test guide ✓ Special exceptions (50/20, 55/15, 65/20) ✓ Interview preparation ✓ Common reasons for denial ✓ After citizenship — next steps

All USCIS forms: [uscis.gov/forms](https://uscis.gov/forms) | Tools: [immigrationiq.us](https://immigrationiq.us)

## 1. Eligibility Requirements

To naturalize you must meet ALL the requirements below. The most common path is the 5-year rule. Spouses of U.S. Citizens may qualify under the 3-year rule with additional conditions.

### Core Requirements (everyone)

- Be at least 18 years old at the time you file Form N-400
- Be a Lawful Permanent Resident (have a green card)
- Demonstrate continuous residence in the U.S.
- Demonstrate physical presence in the U.S.
- Demonstrate residence within a USCIS district / state for 3+ months
- Demonstrate Good Moral Character (GMC) during the statutory period
- Demonstrate basic English proficiency (reading, writing, speaking) — exceptions apply
- Demonstrate basic knowledge of U.S. history and government (civics test)
- Demonstrate attachment to the principles of the U.S. Constitution
- Take the Oath of Allegiance

## 2. 5-Year Rule vs 3-Year Rule

| Requirement          | 5-Year Rule (Standard)    | 3-Year Rule (Spouse of USC) |
|----------------------|---------------------------|-----------------------------|
| LPR for              | 5 years before filing     | 3 years before filing       |
| Continuous residence | 5 years                   | 3 years                     |
| Physical presence    | 30 months of last 5 years | 18 months of last 3 years   |
| Married to USC       | Not required              | Required entire 3 years     |
| USC spouse status    | N/A                       | Citizen entire 3 years      |
| State residence      | 3 months                  | 3 months                    |
| Filing window        | 90 days early OK          | 90 days early OK            |

*TIP: You can file Form N-400 up to 90 days before completing your required residency period. This is called the '90-day early filing rule' and is allowed for both 5-year and 3-year applicants.*

## 3. Continuous Residence vs Physical Presence

### Continuous Residence

You must maintain a primary U.S. residence for the entire required period (5 or 3 years). An absence of 6+ months but less than 1 year is presumed to break continuous residence — you must rebut this presumption

with evidence (kept job, home, family in U.S.). An absence of 1+ year breaks continuous residence completely (with rare exceptions).

### Physical Presence

Total days physically inside the U.S. during the required period. Add up all your trips abroad and subtract from total days. You need at least half the period in the U.S. (30 months of 5 years, or 18 months of 3 years).

■ **Even short trips count. List EVERY trip outside the U.S. on Form N-400, no matter how brief. USCIS verifies via passport stamps and entry/exit records.**

## 4. Good Moral Character (GMC)

GMC must be demonstrated during the statutory period (5 or 3 years). Conduct outside the period may also be considered. The following bars or seriously affects GMC:

### Permanent Bars to GMC

- Murder conviction (any time)
- Aggravated felony conviction on or after November 29, 1990
- Genocide, torture, or persecution involvement

### Conditional Bars (during statutory period)

- Crimes involving moral turpitude
- Two or more offenses with aggregate sentence of 5+ years
- Controlled substance violations (except single offense for 30g or less of marijuana)
- Imprisonment for total of 180+ days
- Smuggling persons, polygamy, prostitution, gambling income
- False testimony for immigration benefit
- Failure to support dependents
- Failure to file tax returns or pay taxes owed
- Habitual drunkenness, illegal gambling income

*TIP: If you have ANY criminal record — even arrests without convictions, dismissed cases, or sealed records — disclose it on Form N-400 and bring certified court records to your interview. Failing to disclose is fraud and can result in denial and possibly removal.*

## 5. Special Exceptions and Accommodations

### English Test Exemptions

- 50/20 Rule: Age 50+ AND LPR for 20+ years — exempt from English test, civics in your language
- 55/15 Rule: Age 55+ AND LPR for 15+ years — exempt from English test, civics in your language
- Medical Disability (N-648): Physical or developmental disability/mental impairment — must be certified by medical doctor on Form N-648

### Civics Test Modification

- **65/20 Rule:** Age 65+ AND LPR for 20+ years — simplified test (20 designated questions, must answer 6 of 10 correctly)

### **Military Service**

- **Section 328:** 1 year honorable peacetime service — most requirements waived/reduced
- **Section 329:** Service during designated period of hostilities — most requirements waived

## **6. Step-by-Step Process**

- 1. Confirm Eligibility:** Use the USCIS Naturalization Eligibility Tool. Verify all requirements are met before paying the fee.
- 2. Complete Form N-400:** File online at [my.uscis.gov](https://my.uscis.gov) or by paper. Online filing is faster and lets you track your case in real time.
- 3. Pay the Filing Fee:** Total: \$760 (\$710 application + \$85 biometrics for most filers). Active military: \$0. Fee waiver available for low-income.
- 4. Submit Supporting Documents:** Copies of green card, marriage/divorce records (if 3-year rule), tax returns (5 years), and travel records.
- 5. Attend Biometrics Appointment:** USCIS schedules your fingerprints, photo, and signature 2-6 weeks after filing.
- 6. Attend the Interview & Tests:** USCIS officer reviews your application, asks you to read/write English sentences, and gives 10 civics questions (must get 6 of 10 correct).
- 7. Receive Decision:** Granted / Continued (need more evidence) / Denied. If granted, you receive Form N-445 with oath ceremony date.
- 8. Take the Oath of Allegiance:** Final step. You receive your Certificate of Naturalization at the ceremony. You are now a U.S. Citizen.

## **7. Document Checklist**

### **Always Required**

- Copy of both sides of your green card (front and back)
- Two passport-style photos (2x2 inches) if filing from abroad
- Copies of tax returns or transcripts for 5 years (3 if 3-year rule)
- List of all trips outside the U.S. since becoming an LPR (dates, duration, destination)
- Selective Service registration (men 18-25 who lived in U.S. as LPR)

### **If Applying Under 3-Year Rule (Spouse)**

- Marriage certificate
- Proof of spouse's U.S. citizenship (passport, certificate of naturalization, birth certificate)
- Proof of termination of all prior marriages
- Evidence of marital union (joint accounts, leases, utilities, photos, etc.)

### If Applicable

- Certified court dispositions for ANY arrest or charge
- Form N-648 if requesting medical disability exception
- Documentation of military service (DD-214) if applying under sections 328/329
- Evidence of name change if your name differs from your green card

## 8. Civics & English Tests Overview

### English Test (3 parts)

- Speaking: assessed throughout the interview
- Reading: read 1 of 3 sentences aloud correctly
- Writing: write 1 of 3 dictated sentences correctly

### Civics Test

Officer asks 10 of 100 official questions. You must answer 6 correctly. Test stops once you reach 6 correct (or 5 wrong). All questions are oral. Some answers change (current officials, your governor) — check [uscis.gov](https://uscis.gov) for updates.

*TIP: ImmigrationIQ offers a Citizenship Exam Prep Kit with all 100 questions and answers. Practice the 100 questions until you can answer them automatically.*

## 9. Fees & Timeline

| Item                                       | Cost / Time                     |
|--------------------------------------------|---------------------------------|
| N-400 (online)                             | \$710 + \$85 biometrics = \$795 |
| N-400 (paper)                              | \$760 + \$85 biometrics = \$845 |
| Active military / honorable veterans       | \$0                             |
| Fee waiver (low income, public assistance) | \$0 (Form I-912)                |
| Reduced fee (150-200% of poverty)          | \$405 + \$85 = \$490            |
| Application processing time                | 5-12 months (varies by office)  |
| Biometrics appointment                     | 2-6 weeks after filing          |
| Interview                                  | 5-10 months after filing        |
| Oath ceremony                              | 0-90 days after approval        |

## 10. Common Reasons for Denial

- Insufficient continuous residence or physical presence
- Failure to disclose criminal history (even minor or dismissed)
- Unpaid taxes or failure to file tax returns
- Failure to register with Selective Service (men 18-25)
- Failure to pay child support or alimony as ordered
- Failure of English or civics test (you get one retake within 60-90 days)
- Misrepresentation or false statements on N-400
- Affiliation with totalitarian or Communist parties

■ **If denied, you can: (1) request a hearing with Form N-336 within 30 days, or (2) reapply later after the issues are resolved. Many denials are based on incomplete records or misunderstandings — work with an attorney for an appeal.**

## 11. After Citizenship

- Apply for U.S. passport at USPS or passport agency (separate from green card)
- Update Social Security Administration with new citizen status
- Register to vote
- Petition for family members (parents, siblings, married children) — new categories open up
- Travel freely with U.S. passport (no more re-entry permits)
- Run for federal office (except President / Vice President)
- Pass U.S. citizenship to children born abroad (if eligible under transmission rules)

| YOUR IMMIGRATIONIQ TOOLKIT |                                                                                              |
|----------------------------|----------------------------------------------------------------------------------------------|
| → AI Chat Assistant        | <a href="https://immigrationiq.us/chat">immigrationiq.us/chat</a>                            |
| → Case Status Tracker      | <a href="https://immigrationiq.us/case-tracker">immigrationiq.us/case-tracker</a>            |
| → Visa Bulletin Dashboard  | <a href="https://immigrationiq.us/visa-bulletin">immigrationiq.us/visa-bulletin</a>          |
| → USCIS Fee Calculator     | <a href="https://immigrationiq.us/fee-calculator">immigrationiq.us/fee-calculator</a>        |
| → Find Immigration Lawyers | <a href="https://immigrationiq.us/lawyers">immigrationiq.us/lawyers</a>                      |
| → Free Legal Aid Resources | <a href="https://immigrationiq.us/lawyers">immigrationiq.us/lawyers</a> (Free Legal Aid tab) |



## ImmigrationIQ — immigrationiq.us

For informational purposes only. NOT legal advice. Laws change frequently. Verify at [uscis.gov](https://uscis.gov). Consult a licensed immigration attorney for your specific situation.